

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: John Kurita	Team: Team # 4	CCRB Case #: 201002359	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Wednesday, 02/17/2010 12:37 PM	Location of Incident: Penn Station	18 Mo. SOL 8/17/2011	Precinct: 14
Date/Time CV Reported Wed, 02/17/2010 2:24 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 02/22/2010 11:17 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM David Poggioli	17028	939236	TB DT02

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Paul McCartney	28860	938977	TB DT02

Officer(s)	Allegation	Investigator Recommendation
A . POM David Poggioli	Force: PO David Poggioli used physical force against § 87(2)(b)	A . Complaint Withdrawn

Case Summary

On February 17, 2010, § 87(2)(b) filed a complaint with IAB against an NYPD officer. On February 22, 2010, the CCRB received IAB log number 10-08535 regarding his complaint. § 87(2)(b) reported that on February 17, 2010 at approximately 12:37 p.m., he was arrested for selling Metrocard swipes at Penn Station in Manhattan and an officer, PO1, tackled him to the ground, injuring his ribs (**Allegation A**). IAB identified PO David Poggoli as an involved officer and PO Paul McCartney as a witness officer. § 87(2)(g) .

In an in-person statement at § 87(2)(b) on Rikers Island on April 15, 2010, § 87(2)(b) withdrew his complaint. § 87(2)(b) withdrew his complaint because the injury he sustained as a result of his arrest on February 17, 2010 healed. § 87(2)(b) was not coerced by anyone from the NYPD or CCRB to withdraw his complaint and he withdrew his complaint of his own free will. This conversation was confirmed by SI Almeyda. § 87(2)(b) withdrew his complaint in writing and his signed withdrawal form was added to case file on April 15, 2010.

§ 87(2)(g) It is therefore recommended that the case be closed **complaint withdrawn**.

Team: 4

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Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date